

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
MOHAMED ALGABYALI,

Plaintiff,

-against-

THE CITY OF NEW YORK,
DETECTIVE JOHN EDGAR,Defendants.
-----X**SUMMONS**

Index No.:

Plaintiff Designates Kings County
As the Place of Trial

Basis of Venue: Place of Occurrence

To the above-names Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, NY 10007JOHN EDGAR
Criminal Enterprise Investigation Division
1 Police Plaza
Room 110C
New York, NY 10038Dated: New York, New York
April 29, 2024Cody Warner, P.C.
Counsel for Plaintiff
11 Broadway
Suite 615
New York, NY 10004
212-627-3184By: Cody Warner
CODY WARNER, ESQ

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MOHAMED ALGABYALI,

Plaintiff,

-against-

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Defendants.
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VERIFIED COMPLAINT

Index No.:

Plaintiff, MOHAMED ALGABYALI, by his attorney, CODY WARNER, alleges as follows:

PRELIMINARY STATEMENT

1. This action arises from the Defendants' arrest of Mohamed Algabyali ("Plaintiff") on April 18, 2023. Plaintiff asserts constitutional claims of false arrest and excessive force pursuant to 42 U.S.C. § 1983 and analogous claims under New York state law. Plaintiff seeks compensatory and punitive damages, costs, disbursements, and attorney's fees pursuant to applicable state law.

VENUE AND JURISDICTION

2. Venue is proper in Kings County Supreme Court pursuant to CPLR § 503 because the acts complained of herein occurred in Kings County, New York, and Plaintiff suffered damages that exceed the jurisdictional amount of all lower courts of the State of New York

3. This action was commenced within one year and ninety days after the occurrence of the event upon which the claims are based.

JURY DEMAND

4. Plaintiff respectfully demands a trial by jury of all issues in this matter.

NOTICE OF CLAIM

5. On September 20, 2023, Plaintiff filed a petition in Kings County Supreme Court seeking leave for the Court to deem his then served notice of claim against the City of New York (“Defendant City”) as timely filed, *nunc pro tunc*. On February 16, 2024, the Honorable Patria Frias Colon ordered that Plaintiff’s notice of claim was timely filed, *nunc pro tunc*, and further ordered that Plaintiff submit to a GML 50-h hearing within sixty-days of the service of the Court’s order, which was served to the parties via NYSCEF on February 26, 2024. Plaintiff also served said order on Defendant City. More than sixty days have elapsed since the service of the Court’s order, and Defendant City has not demanded a GML 50-h hearing.

PARTIES

6. Plaintiff is a thirty-one-year-old man who resides in Brooklyn County, New York.

7. Defendant Detective John Edgar (“Defendant Edgar”) was at the time of the incident an officer, employee, and agent of the New York City Police Department (“NYPD”), which is an agent of Defendant City.

8. Defendant Edgar is sued in his individual and official capacities. At all times mentioned herein, Defendant Edgar acted under the color of state law, in the capacity of an officer, employee, and agent of Defendant City.

9. Defendant City is a municipality created and authorized under the laws of New York State. It is authorized to maintain, direct, and to supervise the NYPD, which acts as its law enforcement agent and for which it is ultimately responsible.

STATEMENT OF FACTS

10. On April 18, 2023, Plaintiff was lawfully driving his vehicle in South Brooklyn.

11. Plaintiff did not commit any traffic offenses while driving that day.

12. Plaintiff was not wanted by the NYPD as a suspected perpetrator of any offense.
13. Defendant Edgar stopped his vehicle in front of Plaintiff's vehicle, which prevented Plaintiff from moving his vehicle.
14. Defendant Edgar and other members of the NYPD approached Plaintiff's vehicle and opened the front passenger side door.
15. Defendant Edgar grabbed Plaintiff and aggressively pulled him out of the vehicle.
16. Defendant Edgar threw Plaintiff onto the pavement.
17. NYPD officers then placed their knees of Plaintiff's back and placed him in handcuffs.
18. Plaintiff sustained a cut to his wrist due to Defendant Edgar's excessive use of force.
19. Defendant Edgar then arrested Plaintiff and gave him a Criminal Court Appearance Ticket, which charged Plaintiff with Reckless Driving (V.T.L. § 1212).
20. The Criminal Court Appearance Ticket ordered Plaintiff to appear in Criminal Court on May 8, 2023.
21. Plaintiff had not recklessly driven his vehicle, and therefore Defendant Edgar's arrest of Plaintiff was not supported by probable cause or otherwise privileged.
22. The criminal case against Plaintiff was dismissed at his first court appearance on May 8, 2023.
23. As a result of the foregoing, Plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment, suffering humiliation, and deprivation of his constitutional rights.

CAUSES OF ACTION**First Claim****False Arrest Under 42 U.S.C. § 1983**

24. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if fully stated therein.

25. Defendant Edgar deprived Plaintiff of his rights afforded by the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully arresting and detaining Plaintiff.

26. The wrongful and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without probable cause, without a warrant, and without privilege or consent.

Second Claim**False Arrest Under New York State Law**

27. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully therein.

28. Defendant Edgar caused Plaintiff to be arrested without probable cause.

29. Plaintiff was conscious of his confinement.

30. Plaintiff did not consent to his confinement.

31. Plaintiff's arrest was not otherwise privileged.

32. Defendant City, as the employer of Defendant Ceesay, is responsible for her wrongdoing under the doctrine of *respondeat superior*.

33. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

Third Claim**Negligent Screening, Hiring, and Retention Under New York State Law**

34. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully therein.

35. Defendant City owed a duty of care to Plaintiff to adequately hire, retain, and supervise its employee Defendant Ceasay.

36. Defendant City breached that duty of care.

37. Defendant City placed Defendant Edgar in a position where he could inflict foreseeable harm.

38. Defendant City knew or should have known Defendant 's propensity to engage in the unlawful conduct heretofore alleged in this Complaint.

39. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

Fourth Claim**Excessive Force Under 42 U.S.C. Section 1983**

40. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if fully stated herein.

41. By the actions described, Defendant Edgar deprived Plaintiff of his Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically her right to be free from excessive and unreasonable force.

Fifth Claim**Assault Under New York State Law**

42. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if fully stated herein.

43. By the actions described, Defendant Edgar placed Plaintiff in apprehension of imminent and harmful offensive bodily contact.

44. Defendant City, as employer of Defendant Edgar, is responsible for the wrongdoing under the doctrine of *respondeat superior*.

45. As a direct a proximate result of the aforementioned conduct, Plaintiff sustained the damages and injuries hereinbefore alleged.

Sixth Claim

Battery Under N.Y. State Law

46. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if fully stated herein.

47. As detailed above, Defendant Edgar intentionally touched Plaintiff in an offensive and harmful manner, and he intentionally subjected him to offensive and harmful contact.

48. Defendant City, as employer of Defendant Edgar, is responsible for the wrongdoing under the doctrine of *respondeat superior*.

49. As a direct a proximate result of the aforementioned conduct, Plaintiff sustained the damages and injuries hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests the following relief jointly and severally against the Defendants:

- a. An order awarding compensatory damages for Plaintiff in an amount to be determined by a jury;

- b. An order awarding punitive damages in an amount to be determined by a jury;
- c. Reasonable attorney's fees and the costs and disbursements of this action; and
- d. Such other and further relief as this Court may deem appropriate.

DATED: New York, New York
April 29, 2024

Cody Warner, P.C.
Counsel for Plaintiff
11 Broadway
Suite 615
New York, NY 10004
212-627-3184

By: *Cody Warner*
Cody Warner, Esq.

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss:

I, **CODY WARNER**, an attorney admitted to practice in the courts of New York State, affirm that I am the principal attorney of the firm **CODY WARNER, P.C.**, counsel of record for Plaintiff in the within action. I have read the foregoing and know the contents thereof. The same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason this verification is made by me and not by Petitioner is because Petitioner resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: April 29, 2024
New York, NY

Cody Warner

Cody Warner, Esq.
Attorney for Plaintiff

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CODY WARNER, P.C.

By: Cody Warner
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